

United States District Court for the Western District of Virginia

Mara Ellison v. Officer Nolan Rusk, City of Alder Creek, and Chief Samuel Orton

Civil Action No. SYN-WDVA-25-CV-0733 Complaint and Jury Demand — filed April 7, 2025

Plaintiff Mara Ellison brings this civil-rights action under 42 U.S.C. § 1983. She alleges that Officer Nolan Rusk used objectively unreasonable force during a welfare-check seizure at Larkspur Court Apartments on February 3, 2025. She also alleges municipal and official-capacity theories against the City of Alder Creek and Police Chief Samuel Orton. All names, places, events, docket numbers, and exhibits in this document are fictional and were created only for an appellate-training exercise.

Ellison does not challenge the authority to begin a welfare check or ask officers to leave a person in crisis without assistance. Her claim concerns the degree of force Rusk allegedly selected after he took hold of her left wrist. According to Ellison, she was seated, unarmed, and visibly distressed; she neither struck an officer nor reached for equipment. She alleges that Rusk nevertheless applied a conducted-energy weapon in drive-stun mode while forcing her down.

The requested relief includes compensatory damages, permitted equitable relief, costs, and a jury trial. Allegations in this pleading state Ellison's position and are not findings. Later testimony, recordings, and reports may support, qualify, or dispute them.

Parties, jurisdiction, and venue

Mara Ellison is an adult resident of Alder Creek, Virginia. On the evening at issue she lived at Larkspur Court Apartments, 1844 Holloway Road, Alder Creek, Virginia 24018. She sues Nolan Rusk in his individual capacity. At all relevant times Rusk was employed as a sworn officer of the Alder Creek Police Department and acted under color of Virginia law while responding to a dispatched welfare call.

The City of Alder Creek is a fictional Virginia municipal corporation responsible for the police department's policies and training. Samuel Orton is the fictional police chief. Ellison names Orton only in his official capacity in this original complaint. The official-capacity claim is pleaded as a claim against the municipality rather than as a demand for personal damages from Orton.

This Court has federal-question jurisdiction because the action arises under the Constitution and laws of the United States. Section 1983 supplies the civil cause of action asserted here. Supplemental jurisdiction is not required for the single federal theory pleaded against Rusk, although the complaint preserves any remedy incident to that claim. Venue is proper in this district because every alleged act occurred in Alder Creek and the parties reside or perform public duties here.

The Fourth Amendment supplies the constitutional standard for the challenged seizure force. Ellison asks the Court to assess reasonableness from the circumstances confronting an officer, including the purpose of the encounter, any immediate threat, any flight, and the nature of any resistance. She does not ask the Court to infer liability merely from injury.

Welfare request and information available before contact

At 19:42 on February 3, 2025, Ellison's sister, Iris Ellison, called emergency communications. Iris reported concern that Mara had missed medication and appeared to be experiencing a mental-health crisis. She requested a welfare check at Mara's apartment rather than a criminal investigation. Iris expressly reported that she had not seen Mara with a weapon and knew of no weapon associated with the situation. She described Mara as upset and in need of calm assistance.

Dispatcher Lena Cho created a welfare event and sent Officers Rusk and Priya Vega at 19:47. The call was not coded as an assault, burglary, weapons complaint, or wanted-person encounter. No warrant, criminal charge, or report of violence preceded dispatch. Ellison alleges that those noncriminal circumstances were available to Rusk through the dispatch record before he arrived.

Rusk reached Larkspur Court at approximately 19:52. His body-worn camera was recording. The apartment's exterior breezeway was illuminated by fixed building lights, although rails, support posts, clothing, and the officers' own bodies could obstruct a chest-mounted camera at close range. Ellison was seated in the breezeway near her door. Her empty hands were initially visible. She did not run when the marked police vehicle arrived, close herself behind a door, or approach either officer.

Ellison alleges that the call's protective purpose and the absence of reported crime or weapon materially limited the force reasonably needed at first contact.

Initial exchange and beginning of the seizure

Rusk approached Ellison and asked whether she was Mara. She answered and said she wanted space. The parties exchanged words about Iris's call and whether Ellison needed medical help. Ellison alleges that she remained seated, used no threat, and displayed no weapon. Vega approached from the open end of the breezeway but was not yet close enough to see every movement of Ellison's hands.

At approximately 19:53:02, Rusk grasped and restrained Ellison's left wrist. Ellison alleges that this physical restraint began the seizure. She further alleges that the grip caused immediate pain and that she recoiled and pulled against it. She does not allege that she stood perfectly still or followed every command. She alleges instead that her movement was a pain response and noncompliance, not an attempt to punch Rusk, seize his equipment, escape, or injure anyone.

The chest-camera view became obstructed at 19:53:08. The obstruction continued until 19:53:22, covering the critical close-contact interval. During that period, audio captured movement, Rusk saying "stop pulling," and Ellison saying "you're hurting me." Ellison alleges that those sounds do not establish a strike or a reach toward Rusk's duty belt. Vega's angle likewise did not reliably show Ellison's hands during the decisive seconds.

This pleading alleges Ellison's own account. It does not claim that the recording visually proves every movement hidden by the obstruction.

Drive-stun application and physical descent

Between approximately 19:53:16 and 19:53:21, Rusk applied one five-second drive-stun cycle from a conducted-energy weapon while forcing Ellison toward the breezeway floor. In drive-stun use, the device is pressed against the body rather than firing probes from a distance. Ellison alleges that the application produced acute pain and two superficial contact burns. She cried out during the cycle.

Ellison alleges that, when Rusk chose that force, she was unarmed and outnumbered, had not fled, had not struck him, had not grabbed or reached for his belt, and presented no immediate danger to either officer or another person. She acknowledges pulling her wrist and failing to comply promptly. She alleges that those actions, viewed in the protective and noncriminal setting, did not create an immediate safety exigency warranting a painful electronic-force application.

The camera view cleared at approximately 19:53:22. Ellison was down, and Vega moved to help control her hands. The officers completed handcuffing at approximately 19:53:37. Ellison does not allege another energy cycle. She alleges that Rusk did not first allow time for slower communication, repositioning, or Vega's assistance after taking her wrist and before activating the device.

The recording's obstruction is material. Ellison relies on her testimony, the surrounding visible events, the call information, medical evidence, and reasonable inferences. She does not allege that the obscured pixels conclusively depict her hands.

Care and injuries alleged

After handcuffing, Ellison complained of wrist and shoulder pain and burning at the contact sites. Paramedic Mateo Cole evaluated her. The assessment documented an abrasion at the left wrist, two superficial contact burns, and symptoms consistent with a shoulder strain. Ellison was transported to Alder Creek Regional Medical Center. Imaging did not identify a fracture. The absence of a fracture does not eliminate the alleged pain, but the complaint does not characterize the injuries as a broken bone or permanent paralysis.

Hospital personnel cleaned and dressed the superficial areas, assessed shoulder movement, provided conservative treatment, and gave follow-up instructions. Ellison later participated in crisis stabilization and outpatient follow-up. She alleges physical pain, temporary restriction of ordinary activity, emotional distress, and reasonable treatment expense. She does not ask the medical records to decide whether she struck Rusk, reached for a belt, or merely recoiled. Clinicians recorded histories for care; they did not witness the obscured encounter.

Ellison was not arrested or charged with assault, obstruction, or another offense arising from the episode. Her transfer was for medical and crisis-related care. She alleges that the lack of a criminal charge is consistent with the welfare purpose, though she recognizes that charge selection alone does not resolve the constitutional force question.

Damages will be proved through admissible evidence. This complaint states categories, not a final monetary calculation.

Count One — excessive force against Officer Rusk

Ellison incorporates the preceding factual allegations. Rusk acted under color of state law when he restrained her wrist, used the conducted-energy weapon, forced her down, and completed the seizure. The Fourth Amendment prohibited force that was objectively unreasonable under the totality of the circumstances. The reasonableness inquiry accounts for the low or absent severity of suspected crime, whether Ellison posed an immediate safety threat, whether she actively resisted in a dangerous way, whether she attempted flight, and the encounter's welfare purpose.

On Ellison's alleged facts, she was an unarmed and distressed person seated outside her home. She pulled against a painful wrist grip but did not strike, threaten, grab, reach for equipment, or flee. Rusk had another officer available and no immediate safety exigency. Applying a five-second drive-stun cycle while forcing her down was, Ellison alleges, disproportionate to nonthreatening noncompliance and caused compensable injury.

Qualified immunity does not justify dismissal on the pleaded facts, Ellison alleges, because settled Fourth Amendment principles required force proportionate to an actual safety need and forbade serious painful force against an unarmed person who posed no immediate danger. This paragraph states Ellison's legal position; it does not resolve later factual disputes.

Rusk's acts were a factual and legal cause of the wrist abrasion, contact burns, shoulder strain, pain, and emotional harm alleged. Ellison seeks relief from Rusk individually to the extent allowed by law.

Count Two — municipal and official-capacity allegations

Ellison incorporates the factual allegations while pleading this count in the alternative. She alleges that the City, acting through policymakers including Chief Orton, maintained or tolerated inadequate guidance concerning painful electronic force during noncriminal mental-health welfare encounters. She alleges deficiencies in differentiating dangerous assaultive resistance from reflexive pulling, distress, or nonthreatening noncompliance. She also alleges insufficient supervisory review when a close-range camera cannot show the subject's hands during the force decision.

Ellison alleges that municipal training emphasized gaining prompt control without adequately requiring a contemporaneous immediate-danger assessment before drive-stun use. She further alleges that the City's review process accepted an officer's characterization of "active resistance" without preserving a distinct analysis of threat, purpose, and feasible de-escalation. She pleads that these choices amounted to deliberate indifference and were a moving force behind the application at issue.

The City and Chief deny these allegations and may establish that written policy required proportionality, crisis recognition, warnings when feasible, and documentation. This complaint does not treat a single incident as automatic proof of municipal liability. Ellison alleges that discovery will identify training materials, prior reviews, and policymaker decisions needed to prove the claim.

The official-capacity claim against Orton seeks no separate recovery duplicative of the City. Ellison reserves the right to amend or narrow parties and theories as the pleadings and record develop.

Prayer, jury demand, and counsel certification

Ellison requests judgment declaring that the force used against her violated the Fourth Amendment; compensatory damages in an amount determined by the jury; punitive damages against Rusk if the evidence satisfies the governing standard; reasonable costs and attorney's fees where authorized; appropriate nonduplicative equitable relief against the municipal defendant; pre- and post-judgment interest as permitted; and any further relief the Court deems just.

Ellison demands trial by jury on every issue triable to a jury. She recognizes that the Court decides legal questions, including the governing qualified-immunity standard, while a jury resolves genuinely disputed historical facts when necessary. She also recognizes that an interlocutory appellate court may have authority to review a legal immunity ruling only on an assumed set of facts, without choosing between competing accounts.

Counsel certifies that this synthetic pleading identifies allegations as allegations, uses fictional persons and institutions, and does not quote or reproduce a real litigant's complaint. The caption's simulated docket begins with the designated synthetic prefix. Service in this exercise is deemed made electronically on counsel for Rusk, the City, and Chief Orton on April 7, 2025.

Respectfully submitted, Fictional Counsel for Mara Ellison

The signature is included solely to complete the fictional docket record. It is not a representation to a real court, and no person may rely on it as legal advice or evidence of an actual event.